

San Diego (2007) 154 Cal.App.4th 97, 112 (stating that “[a] statement can also be libelous per se if it contains a charge by implication from the language employed by the speaker and a listener could understand the defamatory meaning without the necessity of knowing extrinsic explanatory matter”).) Here, a reader could not understand the charge by implication by the mere name “southbaydoesntpay” without extrinsic explanatory matter; thus, the Instagram handle “southbaydoesntpay” is not in and of itself defamatory per se.

Dean also acknowledges that he does not allege damages. (See Opposition, p.4:26-27 (stating that “[t]he cross-complaint pleads statements that are covered by Civil Code § 46(3) and do not require a pleading of damages”).) “Defamatory language not libelous on its face is not actionable unless the plaintiff alleges and proves that he has suffered special damage as a proximate result thereof.” (*Bartholomew v. YouTube, LLC* (2017) 17 Cal.App.5th 1217, 1226; *id.* at p.1233 (stating that “a statement alleging a breach of contract is not defamatory per se”).)

Cross-defendants’ demurrer to the fifth cause of action of the XC for slander per se is SUSTAINED with 10 days leave to amend.

Cross-defendants shall prepare and submit a proposed final order consistent with this tentative ruling.

Calendar Line 10

Case Name: *Milz Development & Construction v. Dean, et al.*

Case No.: 25CV474448

Cross-defendants Milz Development & Construction, Grizzly Demolition & Excavation, Mark Milz and Nathan Thomas Churchill (collectively, “cross-defendants”) demur to the fifth cause of action of cross-complainant Shawn M. Dean dba South Bay Grading’s (“Dean”) cross-complaint (“XC”) for slander per se. The fifth cause of action identifies the complained of

statements in Exhibit G of the XC, which are Instagram posts from a user with the name “southbaydoesntpay.” (See XC, ¶ 43, citing to Exh. G.) The posts are republications of: a claim of a mechanics lien, apparently with DJ Khaled’s “Out Here Grindin’” playing in the background; a Chase bank returned deposit details page with a returned check from South Bay Grading; Contractor’s License Detail information for Dean from the Contractors State License Board website, including the Citation Violation Disclosure for failure to timely pay a subcontractor; a summons and complaint against Dean for breach of contract; arrest records for nonparty Aaron Hosmer; and, a comment from “intelibilt.” Also attached is an Instagram page of “garbageman_church.”

In opposition, Dean argues that “South Bay has alleged that the Instagram account at issue titled ‘southbaydoesntpay’ is in and of itself a *false statement*.” (Opposition, p.4:15-17.) “The test is whether a defamatory meaning appears from the language itself without the necessity of explanation or the pleading of extrinsic facts.” (*Barnes-Hind, Inc. v. Super. Ct. (Allergan Pharmaceuticals, Inc.)* (1986) 181 Cal.App.3d 377, 384-385; see also *McGarry v. University of San Diego* (2007) 154 Cal.App.4th 97, 112 (stating that “[a] statement can also be libelous per se if it contains a charge by implication from the language employed by the speaker and a listener could understand the defamatory meaning without the necessity of knowing extrinsic explanatory matter”).) Here, a reader could not understand the charge by implication by the mere name “southbaydoesntpay” without extrinsic explanatory matter; thus, the Instagram handle “southbaydoesntpay” is not in and of itself defamatory per se.

Dean also acknowledges that he does not allege damages. (See Opposition, p.4:26-27 (stating that “[t]he cross-complaint pleads statements that are covered by Civil Code § 46(3) and do not require a pleading of damages”).) “Defamatory language not libelous on its face is not actionable unless the plaintiff alleges and proves that he has suffered special damage as a proximate result thereof.” (*Bartholomew v. YouTube, LLC* (2017) 17 Cal.App.5th 1217, 1226; *id.* at p.1233 (stating that “a statement alleging a breach of contract is not defamatory per se”).)

Cross-defendants' demurrer to the fifth cause of action of the XC for slander per se is SUSTAINED with 10 days leave to amend.

Cross-defendants shall prepare and submit a proposed final order consistent with this tentative ruling.

Calendar Line 12

Case Name: Mario Diaz Ruiz v. Ford Motor Company et al.

Case No.: 25CV483492

Plaintiff Mario Diaz Ruiz purchased a 2021 Ford Explorer (Subject Vehicle) in October 2021 from Hemborg Ford (Dealership). (Complaint at ¶ 7.) Plaintiff delivered the Subject Vehicle to Dealership for substantial repair on at least one occasion. (*Id.* at ¶ 59.) Plaintiff alleges that Dealership “breached its duty to Plaintiff to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards.” (*Id.* at ¶ 61.) Plaintiff sued Dealership and Ford Motor Company in December 2025. The sole cause of action alleged against Dealership is for negligent repair.

At issue is Dealership's petition to compel arbitration, based on the Retail Installment Sales Contract (RISC) signed by Plaintiff and Dealership when Plaintiff purchased the Subject Vehicle. Having reviewed the language of the RISC's arbitration provision and the circumstances of its execution, the court will grant the petition and stay the action.

LEGAL STANDARD

Dealership maintains that the FAA governs the arbitration provision based on the language itself and because the agreement affects interstate commerce. (Mtn. to Compel